

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUPA031399: MICHAEL SWANN vs SPENCER PENHART

06/23/2026 in Department 42

Motion to be Relieved as Counsel

At the last hearing on Attorney Jessica S. Williams' Motion to Be Relieved as Counsel, on May 22, 2026, the Court continued the hearing to this June 23, 2026 date "in order to allow the filing of proper proofs of service." Williams was directed to "give notice of the continued hearing date" and to "file proof of service with the Court."

On June 17, 2026, attorney Williams filed a Notice of Continued Hearing, attaching the prior documents, and serving them on the attorney for Defendant via email and on Plaintiff Michael Swann via FedEx overnight, as well as email. The proof of service now includes an email address (mike.swann1957@gmail.com).

It appears that service has now been made at a proper physical, consistent with the MC-052 declaration of counsel, as well as at an email address. However, service was only made on June 17, 2026, meaning that service was not effective until June 19, 2026 at the earliest, meaning there was only **one-court day notice** of this continued hearing date provided to Plaintiff Swann. Absent his appearance or indication of his waiver of statutory notice, the hearing should be continued once again in order to comply with CCP §1005(b).